

24STCV29324 24STCV29324

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C834%2C07%2F30%2F2026

Source SHA-256: 1a6cd44359ccd5e11f816df0b0eda88ca7129ad2c4dcea435994b568269bf3f8

Case Number: 24STCV29324 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

¿

ROBERT RENKO,

Petitioner,

vs.

L.A.

COUNTY RETIREMENT ASSN.,

Respondent.

Case No.:

24STCV29324

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: MOTION AUGMENT THE ADMINISTRATIVE RECORD

Petitioner Robert Renko ("Petitioner") seeks to augment the administrative record.

The motion is denied.

I.

Background

On February 18, 2026, this Court entered judgment denying the underlying writ petition in this matter.

Petitioner filed a notice of appeal on March 16, 2026. While the appeal was pending, Petitioner sought to add materials to the trial court record through a motion in the Court of Appeal; that request was denied. The Court of Appeal noted only that its denial was "without prejudice" to seeking augmentation "should an included document prove missing." (Resp. Opp., Organ Decl., ¶ 13, Exh. H.) The instant motion followed in this court.

The instant motion, filed July 1, 2026, seeks to "augment the administrative record" to include an April 26, 2019 letter from Petitioner's prior counsel to Francis J. Boyd at LACERA (and related materials previously rejected), on the purported basis that these documents were omitted from the certified record and are necessary to correct alleged misconduct or misrepresentations affecting the underlying disability retirement proceedings.

Petitioner previously sought to augment the administrative record in connection with his writ petition. On September 23, 2025, the Court (Hon. James Chalfant) denied that request as to the same materials at issue here, finding that the documents predated the administrative hearing, were available in Petitioner's counsel's file years before LACERA's final decision, and were not shown to be relevant to the asserted theory of misconduct. (See Court Order dated 9/23/2026, addressing Petitioner's Exhibit 2; see also Resp. Opp., Organ Decl., ¶ 11, Exh. F [Exh. 1 therein].)

On July 17, 2026, Respondents filed their opposition to the motion. On July 20, 2026, Petitioner filed a reply. On July 22, 2026, Petitioner filed a "correction and clarification" of his Reply.[1]

II.

Discussion

1.

Lack of Jurisdiction

The Court lacks jurisdiction to grant the requested relief.

Upon filing of the notice of appeal, jurisdiction over matters “embraced in or affected by the judgment” shifted to the Court of Appeal under Code of Civil Procedure section 916.

The instant motion seeks to alter the administrative record underlying the judgment and to reopen merits briefing. However, granting such relief would undoubtedly modify or affect the judgment now on appeal. Petitioner's reply papers do not meaningfully address Code of Civil Procedure section 916, identify any exception that applies, or otherwise supply authority barring its application to these facts. Further, the Court of Appeal's order does not authorize renewed litigation of previously denied augmentation requests. On its face, it appears to contemplate only correction where a document already included in the administrative record is missing from the appellate record, which is not the case here.

Additionally, Petitioner's reply asks this Court to remand the matter to the Board of Retirement for a new determination on an expanded record. This requested relief, which would reopen the merits and direct new administrative proceedings, further confirms that Petitioner is not seeking correction of an inadvertently omitted document from the appellate record, but instead seeks to relitigate issues already resolved by this Court and now pending on appeal.

The motion is therefore DENIED for lack of jurisdiction.

2.

Improper Motion for Reconsideration

Independently, and assuming *arguendo* that the Court in fact has jurisdiction to hear it, the instant motion constitutes an improper attempt to relitigate an issue previously decided. As reflected in the September 23, 2025 minute order, this Court already denied Petitioner's request to add the same documents to the administrative record.

Even assuming such motion were proper or timely, Petitioner has not shown "new or different facts, circumstances, or law" as required by Code of Civil Procedure section 1008. The renewed motion is substantively identical to the prior request, and the reply does not rebut that the evidence was available years before the administrative hearing and that the prior denial resolved the same issues now presented.

Accordingly, the motion is DENIED on this separate, alternative basis.

III.

Conclusion

The motion to augment the administrative record is DENIED.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

.

Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

.

If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

.

Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

.

If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

While this filing was not authorized, the Court exercised its discretion to review and consider it.